



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing nine judgments on Tuesday 3 March 2020 and 38 judgments and / or decisions on Thursday 5 March 2020.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 3 March 2020

[Filkin v. Portugal \(application no. 69729/12\)](#)

The applicant, Mr Evgeny Filkin, is a Russian national who was born in 1955 and lives in Vienna (Austria).

The case concerns the freezing of the applicant's bank account in criminal proceedings concerning suspected money laundering.

In February 2011 the Central Criminal Investigation and Action Department opened a criminal investigation into suspicious banking transactions possibly linked to money laundering, registered on accounts held with the BANIF bank in Valença. The investigating judge at the Central Court of Criminal Investigation ordered the accounts to be frozen until 2 May 2011. The bank informed Mr Filkin that he could not use his account in accordance with the judge's decision. The measure was extended several times. The steps taken by Mr Filkin and his appeals to lift the freezing order were unsuccessful.

In a decision of 23 July 2014 the investigating authority discontinued the case on the grounds that it was impossible to ascertain the origin of the suspicious funds or to decide whether they were the proceeds of illegal activities. On 24 July 2014 the investigating judge lifted the measure freezing Mr Filkin's account without informing him.

Relying on Article 1 of Protocol No. 1 (protection of property) to the European Convention on Human Rights, the applicant submits that the freezing of his bank account breached his right to the peaceful enjoyment of his possessions. Under Article 6 §§ 1 and 2 (right to a fair hearing/presumption of innocence) of the European Convention, he argues that the reason for the freezing was his refusal to cooperate with the authorities. He complains of a reversal of the burden of proof in criminal matters.

Revision

[Ana Ionescu and Others v. Romania \(no. 19788/03 and 18 other applications\)](#)

The applicants are French, German, and Romanian nationals who were born between 1927 and 1982 respectively who mostly live or used to live in Romania.

The case concerns a request for revision of a judgment on the nationalisation of the applicants' property by the former communist regime.

In its [judgment](#) of 26 February 2019 the Court held that there had been a violation of Article 1 of Protocol No. 1 (protection of property) on account of the applicants' inability to recover possession of their properties despite final court decisions retroactively acknowledging their property rights.

On 30 September 2019 the Government of Romania requested a revision of the judgment, which they had been unable to enforce because one of the applicants, Petru Nicolae Albu (application no. 36384/03, *Albu and Others v. Romania*), had died before the judgment had been adopted.

The Court will deal with this request for revision in its judgment to be delivered on 3 March 2020.

[Convertito and Others v. Romania \(nos. 30547/14, 30549/14, 30558/14, 30570/14, and 30578/14\)](#)

The applicants, Mr Armando Convertito, Mr Giovanni Muscia, Mr Franco Manfredi, Mr Pasquale De Stasio and Mr Luigi Felice Francesco Di Mariano, are Italian nationals who were born in 1975, 1983, 1974, 1973 and 1961 respectively and live in San Marco Evangelista, Caltagirone, San Cono, Naples and Aci Bonaccorsi. The case concerns the annulment, owing to administrative flaws, of State degrees in dentistry obtained by the applicants in Romania.

In October 2003 the Dean of the Faculty of Medicine and Pharmacy of Oradea University accepted applications from the first four applicants to enrol as first-year students in “dental medicine”. In October 2004 he accepted the application of the fifth applicant. Following these registration decisions the applicants commenced their studies.

In September 2005 and November 2009 the Ministry of Education issued letters of acceptance, which were valid from the academic year 2005/2006. In early 2009 there was an exchange between the president of the university and representatives of the Ministry of Education concerning the letters of acceptance of 39 foreign students, including the five applicants. The first applicant had still not received his letter of acceptance and the letters issued to the others did not concern the year of their university registration, but the following year. The President sought the advice of the Ministry of Education on the advisability of all these students taking the final examinations. In September 2009, January and September 2010, the university senate decided to allow the five applicants to sit the final examinations.

The first four applicants passed their examinations in the February 2010 session and were awarded their State degrees in dentistry in March 2010. The fifth applicant, sitting in the September 2010 session, received his degree in November 2010. Subsequently, the applicants started the procedures for the recognition of these degrees by the Italian authorities in order to practise in Italy.

In 2011, in the context of a procedure conducted by the Ministry of Education, at the request of the Italian authorities, to verify the authenticity of the degrees, a report was drawn up which concluded that there were irregularities concerning the belated issuance of acceptance letters to several students, including those of the five applicants. In September 2011 the Ministry of Education asked the President of Oradea University to annul the degrees owing to the late issuance of the letters of acceptance. In the same month, the senate and the president of the university annulled the degrees on the basis of the findings of the verification procedure. The applicants filed a complaint.

On 25 April 2013 the Bihor district court annulled the administrative decisions nullifying the degrees and delivered its judgment on the merits, finding that there was no fraud on the part of the applicants. The parties appealed against this judgment. On 16 October 2013 the Court of Appeal of Oradea dismissed the applicants’ appeal and allowed the university’s appeal. It found that the applicants had not complied with the regulations on university registration, on the grounds that the letters of acceptance (except for that of the fifth applicant) only allowed registration for the academic year 2005-2006. The failure to provide certificates of language proficiency at the time of registration and the absence of the university president’s signature on the registration decisions confirmed, in the Court of Appeal’s view, that the degrees had been obtained fraudulently.

The applicants allege that the annulment of their State degrees, obtained after six years of higher education, has breached their right to respect for their private life since the administrative flaws

held against them are, in their view, attributable to the university administration and the Ministry of Education. They rely on Article 8 (right to respect for private and family life).

[Baş v. Turkey \(no. 66448/17\)](#)

The applicant, Mr Hakan Baş, is a Turkish national who was born in 1978 and lives in Kocaeli (Turkey).

The case concerns the pre-trial detention of Mr Baş, a judge at the time, following the attempted coup of 15 July 2016.

During the night of 15 to 16 July 2016 a group of members of the Turkish armed forces attempted to carry out a military coup aimed at overthrowing the National Assembly, the government and the President of Turkey. The day after the attempted military coup, the authorities blamed the network linked to Fetullah Gülen, a Turkish citizen living in the United States and considered to be the leader of an organisation referred to as “FETÖ/PDY” (“Gülenist Terror Organisation/ Parallel State Structure”).

On 20 July 2016 the government declared a state of emergency for a period of three months, which was subsequently extended. On 21 July 2016 the Turkish authorities gave notice to the Secretary General of the Council of Europe of a derogation from the Convention under Article 15.

During the state of emergency, the Council of Ministers passed several legislative decrees. Article 3 of Legislative Decree no. 667 provided that the Council of Judges and Prosecutors (“the HSK”) was authorised to dismiss any judges or prosecutors who were considered to belong or be affiliated or linked to terrorist organisations or organisations, structures or groups found by the National Security Council to have engaged in activities harmful to national security. The state of emergency was lifted on 18 July 2018.

On 16 July 2016 the HSK suspended 2,735 judges and prosecutors – including the applicant – from their duties for a period of three months, pursuant to sections 77(1) and 81(1) of Law no. 2802 on judges and prosecutors, on the grounds that there was a strong suspicion that they were members of the terrorist organisation that had instigated the attempted coup and that keeping them in their posts would hinder the progress of the investigation and undermine the authority and reputation of the judiciary.

Also on 16 July 2016, the Kocaeli public prosecutor initiated a criminal investigation in respect of the judges serving in Kocaeli suspected of being members of FETÖ/PDY, including the applicant. On 18 July 2016 the applicant was placed under police supervision. On 19 July 2016 he gave evidence to the Kocaeli public prosecutor, who informed him that he had been suspended from his duties as a result of the HSK’s decision of 16 July 2016, on the grounds of his suspected membership of FETÖ/PDY. The applicant denied being a member of or having any links with that organisation. Later that day, he was brought before the Kocaeli 1st Magistrate’s Court. On 20 July 2016 the magistrate decided to place him in pre-trial detention on suspicion of membership of a terrorist organisation. An objection by the applicant against the order for his detention was dismissed.

On 24 August 2016, applying Article 3 of Legislative Decree no. 667, the plenary HSK dismissed 2,847 judges and prosecutors including the applicant, all of whom were considered to be members of or affiliated or linked to FETÖ/PDY.

On 27 December 2017 the Constitutional Court declared an individual application by the applicant inadmissible, finding that his complaints were manifestly ill-founded.

On 19 March 2018 the 29th Assize Court found Mr Baş guilty of the offence of membership of an armed terrorist organisation, sentenced him to seven years and six months’ imprisonment and, taking into account the period already spent in detention, ordered his release. Mr Baş’s conviction was upheld on appeal. The case is currently pending before the Court of Cassation.

Relying on Article 5 §§ 1, 3 and 4 (right to liberty and security/right to be brought promptly before a judge/right to speedy review of the lawfulness of detention), the applicant complains about being placed in pre-trial detention. He disputes that there was a case of *in flagrante delicto*. He argues that there was no specific evidence giving rise to a reasonable suspicion that he had committed the alleged offence and thus necessitating his pre-trial detention. He submits that the domestic courts gave insufficient reasons for the decisions on his detention. The applicant also complains that no hearing was held during the reviews of his detention, that he was not provided with a copy of the public prosecutor's opinion and that access to the investigation file was restricted. Lastly, he alleges a lack of independence and impartiality on the part of the magistrates who decided on his pre-trial detention.

Thursday 5 March 2020

[Peleki v. Greece \(no. 69291/12\)](#)

The applicant, Ms Ekaterini Peleki, is a Greek national who was born in 1965 and lives in Athens. The case concerns disciplinary proceedings against her, a notary by profession, after she was instrumental in the conveyance of State property to a monastery.

In May and December 2007, Ms Peleki, in her capacity as a notary, drafted two contracts between the Hellenic Real Estate Company and Vatopedi Monastery, providing for the exchange of part of Lake Vistonida, already owned by the monastery, for real estate belonging to the Greek State.

The contracts provided in particular that the monastery would acquire ownership of an area of 860.8 hectares located in Ouranoupoli in Halkidiki. In September 2008 newspaper articles suggested that the exchange had been arranged in the monastery's favour. Following an investigation, the Deputy Public Prosecutor at the Athens Court of First Instance brought disciplinary proceedings against Ms Peleki before the disciplinary board for notaries attached to the Athens Court of First Instance, accusing her of breaching the Notarial Code. On 19 February 2009 the Disciplinary Board issued its decision, concluding that the land in question could not be the subject of a conveyance and referring the case to the Athens Court of Appeal.

In its judgment of 19 April 2011 the Court of Appeal found that the land in question was part of a protected site, classified as a historical monument. It stated that the common property could not be the subject of any transaction or conveyance. The Court of Appeal found the applicant guilty of two offences: the conveyance of land classified as a historical monument without, in addition, excluding from the transaction two Byzantine historical monuments, which were also non-transferable; and the establishment of a limited liability company. It ordered the applicant to be temporarily disqualified from her duties for a period of four months for the first infringement and two months for the second. Ms Peleki appealed to the Court of Cassation, which set aside the judgment of the Court of Appeal in so far as it concerned the creation of a limited liability company, but dismissed the remainder of the appeal.

The applicant complains that the sanctions imposed on her breached a number of provisions of Article 6 (right to a fair hearing).

[Grobelny v. Poland \(no. 60477/12\)](#)

The applicant, Mieczysław Grobelny, is a Polish national who was born in 1953 and lives in Lubniewice (Poland).

The case concerns the national courts' refusal to pay him compensation for the discontinuation of his disability pension for 21 months after a mistake was made in assessing his health and work capacity.

Mr Grobelny, a farmer, was granted a disability pension in 1994 because he was unfit for work. However, following medical examinations in 2008, the social security fund decided that he was not completely unfit and refused pension payments with effect from April 2008.

He appealed against the decision in court, arguing that his health had not improved. The courts eventually reinstated his pension in January 2010, finding that the fund's medical experts had incorrectly assessed his state of health and that he had in fact been unfit for work.

He lodged a civil claim, requesting compensation for the 21 months he had been deprived of his benefits. His claim was examined and dismissed at two levels of jurisdiction in 2012. The courts concluded in particular that compensation could not be awarded because the fund had not done anything illegal.

Relying on Article 1 of Protocol No. 1 (protection of property), Mr Grobelny complains about the refusal to grant him compensation for the period during which he had no financial support from the State, in spite of his recognised incapacity to work.

[Platini v. Switzerland \(no. 526/18\)](#)

The applicant, Michel Platini, is a French national who was born in 1955 and lives in Genolier (Switzerland).

The applicant is a former professional football player, captain and coach of the French national team. In 2007 he was elected as president of the Union of European Football Associations (UEFA) and served as vice-president of the Fédération Internationale de Football Association (FIFA).

In 2015, after a preliminary investigation, the FIFA authorities initiated disciplinary proceedings in respect of an alleged salary supplement of 2,000,000 Swiss francs (CHF), received in 2011, in the context of a verbal contract between the applicant and the FIFA President, for activities as adviser carried out from 1998 to 2002.

The applicant initially received an eight-year ban on all football-related activities at national and international level and was fined CHF 80,000, as decided by the adjudicatory chamber of the FIFA Ethics Committee. The sanction was upheld by the FIFA Appeal Committee, which reduced the length of the ban to six years.

The applicant appealed against this decision to the Court of Arbitration for Sport (CAS). He alleged, in particular, that the Articles of the FIFA Code of Ethics did not apply at the time of the relevant acts and that the sanction appeared excessive. The CAS rejected this complaint but reduced the ban from six years to four and the fine from CHF 80,000 to CHF 60,000.

The applicant lodged a civil-law appeal against the CAS decision before the Federal Court, which upheld the CAS decision, holding that, in view of the applicant's age, 61 in 2015, the length of the ban did not appear excessive.

Relying on Article 6 (right to a fair hearing), the applicant complains that the disciplinary proceedings and the CAS proceedings were incompatible with that Article. Under Article 7 (no punishment without law), he complains that the rules in force at the time of the facts – between 2007 and 2011 – were not applied. Lastly, relying on Article 8 (right to respect for private and family life), he argues that the four-year ban was incompatible with the freedom to exercise a professional activity.

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Tuesday 3 March 2020

Name	Main application number
S.C.S. Petrini & Cie v. Monaco	44108/15
Horhat v. Romania	53173/10
Mircea v. Romania	17274/13
Avdyukov and Others v. Russia	33373/07
Malyshev v. Russia	46192/07

Thursday 5 March 2020

Name	Main application number
Gulaliyev v. Azerbaijan	81551/12
Fajković and Others v. Bosnia and Herzegovina	38868/17
Shiozaki v. France	69802/17
Puporka and Oláh v. Hungary	36581/15
Szervonszky and Others v. Hungary	14894/19
International Association of Road Hauliers of Moldova v. the Republic of Moldova	62206/15
Red Union Fenosa S.A. v. the Republic of Moldova	70054/11
Glušica and Đurović v. Montenegro	34882/12
Kuljić v. Montenegro	24431/11
Marković v. Montenegro	6978/13
Piletić v. Montenegro	53044/13
Sinanović and Others v. Montenegro	45028/13
AEI Investment Industry S.R.L. and Others v. Romania	17910/15
Brădăţeanu and Others v. Romania	27189/17
Lachine and Others v. Romania	34025/15
Munteanu and Others v. Romania	23758/17
Munteanu v. Romania	54640/13
Mureşan v. Romania	23690/15
Sevastre v. Romania	26485/11
Terean and Others v. Romania	28163/16
Akhmetshin and Others v. Russia	42416/17
Aliyev and Others v. Russia	5723/09
Bondaruk v. Russia	71495/13
Iodzhilis and Others v. Russia	2101/18
Kakhkhorov v. Russia	83888/17
Karpin and Others v. Russia	71699/17
Lyays and Others v. Russia	23316/12
Romanov and Others v. Russia	5442/18
Svinarev and Others v. Russia	59932/17
Vokhidov and Others v. Russia	80667/17
Kladničanin v. Serbia	137/10
Kaplan v. Turkey	54776/09
Yönden v. Turkey	54779/09
Ivanko v. Ukraine	46850/13
Tereshchenko v. Ukraine	22227/10

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.